HH 376-26

HCH 5027/25

EXCELLENT QUEUE PRIVATE BUSINESS CORPORATION

Versus

FAIRWINDS FARMING (PVT) LIMITED

And

LAKE FRESH FISHERIES (PVT) LIMITED

And

REGISTRAR OF DEEDS

HIGH COURT OF ZIMBABWE

CHIRAWU-MUGOMBAJ

Harare, 15, 18 and 19 May 2026

L. URIRI, for the applicant

T. ZHUWARARA, for the 1st respondent

A. LANGAVELDT, for the 2nd respondent

COURT APPLICATION FOR A DECLARATORY ORDER AND CONSEQUENTIAL RELIEF

CHIRAWU-MUGOMBA J: This matter was placed before me as one for a declaratory order and consequential relief in terms of s14 of the High Court Act [Chapter *7:06*]. The background can be summarised as follows. In November 2015, the applicant and the second respondent entered into a written loan agreement for the sum of USD35, 000, ' the loan'. Repayment was to be over a ten- year period with interest at the rate of 10% per annum. The applicant was the lender and the second respondent the borrower. As security, the second respondent pledged two stands being 473 and 566 of Kariba Township, ' the properties'. The agreement further provided that in the event of default, the applicant would be entitled to obtain

a court order for the private sale of the properties with the proceeds to be applied against the outstanding loan balance. On the 8th of May 2025, the applicant became aware of a resolution dated the 1st of March 2017 authorising one Ryan Baglow to act on behalf of the company in the sale and transfer of the pledged property. Applicant leant that this person is legally non-existent as his name had been changed to Ryan Stewart when he was still a minor. This resolution was challenged and resulted in an order by Katiyo J of the 2nd of June 2025 declaring the resolution null and void. Notwithstanding the above, the applicant also learnt that the 1st respondent had purchased the properties using the same resolution and had taken transfer. Both the agreement of sale and transfer are therefore invalid. The High Court sitting at Chinhoyi confirmed under HCCC 190/25 that Ryan Biglow is a non-existent person in the matter between Vandira and Lake Fisheries (pvt) Limited vs Ryan Baglow. Based on the invalidity of the resolution, the applicant seeks a declaratory order. In support of the application, the applicant attached the loan agreement; the resolution of the first respondent dated the 1st of March 2017 authorising transfer and Ryan Baglow to sign relevant documents; the notarial deed of change of name of the 23rd of July 2001 changing the name of Ryan Baglow to Ryan Stewart; the court order in HCH 2295/25 setting aside the 1 March 2017 resolution; the judgment in HCCC 190/25; the deed of transfer of the stand 306 Kariba to the first respondent and the deed of transfer of stand 473 Kariba to the first respondent. In the draft order the applicant seeks that the agreement of sale for the properties between the first and second respondents be declared null and void on the basis of an already nullified resolution; that the deed of transfer 5170/17 transferring ownership of the properties to the second respondent be declared null and void and that the third respondent be directed to restore the title to the second respondent.

The first respondent in poorly presented pleadings strenuously opposes the application.

Several preliminary issues are raised as follows:-

a. That the applicant has no *locus standi.*

b. That the applicant has no direct and substantial in the matter.

c. That the relief sought is incompetent for a *declaratur* and the application does not meet the essential requirements of an application of this nature.

d. That the deponent to the applicant's founding affidavit authority to act is defective.

e. That there is fatal misjoinder/non-joinder/material disputes of facts/defective application.

f. In the heads of argument that the commissioning of the founding affidavit is defective and accordingly, there is no proper application before the court.

In the answering affidavit, the applicant raises the following preliminary issue:-

a. That there is no opposing affidavit before the court on the basis of improper commissioning of the opposing affidavit.

In my view, before dealing with other preliminary issues, it behoves me to deal with whether or not there is an application at all before the court and/or whether or not there is any opposition to the matter. These two issues are based on the contestations on the commissioning of the affidavits, one being the founding one and the other, the opposing one. A court can only deal with matters where the parties have a foot at the door. Even the critical issue of *locus standi* can only be determined only upon the basis of there being a valid application in the first place.

In the heads of argument, the first respondent questions the validity of the founding affidavit on the basis that the authority of the deponent to the founding affidavit is defective. The deponent claims to be acting as a manager under a PCB. However, a PCB is under the authority of members and not a board of directors. The resolution also goes as far as seeking the nullification of the agreement of sale. To that end, there is no proper founding affidavit. What has been placed as one is a nullity. In the heads of argument, the first respondent attacks the commissioning of the founding affidavit. The basis is that it does not state the capacity of the person signing as commissioner of oaths, the statutory basis for the authority and whether or not they fall into any of the permissible categories under s8 of the Justices of the Peace and Commissioners of Oaths Act, [Chapter *7:09*], whether they are a marriage officer being the only category under which clergy may be recognised as commissioners of oath or whether they are a legal practitioner, magistrate, justice of

the peace or any other recognised officer bearer. They submit that there is no application before the court. Reference is made to *Firstel Cellular (pvt) Limited vs. Netone Cellular (pvt} Limited,* SC-1/15 and *JCDECAUX Zimbabwe (pvt) Limited vs Samukange and ors, HH-212-25.*

In their submissions on these issues, the applicant state as follows. That the contention by the first respondents that the deponent to the founding affidavit has no authority is misguided as the resolution states clearly that it is members of the PCB that bestowed on him authority to act and that the resolution is an extract of minutes of a meeting of members. Therefore the requirements of s 265 of the Companies and other Business Entities Act [Chapter *24:31*] have been met. On the other hand the applicant also questions the validity of the opposing affidavit of the first respondent in that the person who commissioned it put a stamp that merely depicts that they are a Police District Intelligence Officer of the Kariba District Headquarters. This is not in compliance with the act. They also place reliance on the *Firstel Cellular (pvt) Limited* matter and *JCDECAUX Zimbabwe (pvt) Limited* matters though emphasising that the Supreme Court decision is the binding one. They submit that the first respondent's opposing affidavit appears to have been sworn to before a police officer. However, the person who signed it has not been identified nor are they described as a commissioner of oaths. A plethora of cases has dealt with the identity of the Commissioner of oaths – *PG vs Makarichi and ors*, HH-502-23 and *Muzanenhamo vs Gadaga and ors* HH-65-06. That being, said, there is no notice of opposition before the court and the matter must proceed as an unopposed matter.

In the *Firstel Cellular (pvt) Limited,* per PATEL JA(as he then was) it was held as follows.

> "It is common cause that there is no specific legislation regulating the issue in this jurisdiction and that the matter is one that is governed by practice. In that regard, what is required is that any stamp that is used to designate a commissioner of oaths should clearly identify the person before whom an affidavit is deposed and the office or capacity in which he or she acts as a commissioner. *In casu*, it is not disputed that Raymond Moyo is a legal practitioner and a notary public and, as such, a recognised commissioner of oaths. The respondent has therefore verified its cause of action in an affidavit, deposed by its functionary duly authorised thereto, before a clearly identified commissioner of oaths. That, in my view, suffices for the intended purpose of adducing evidence under oath and renders the validity of the respondent's founding affidavit manifestly impervious to challenge".

Statutory Instrument 648/83 which is the Justices of Peace and Commissioners of Oath Act- *Ex Officio* Commissioners of Oaths Designation, specifies the following as being authorised to act as commissioners of oath in relation to police officers. For all districts- Police officer of the rank of Chief Inspector

or Inspector. For specific or particular districts- Member in charge of police station or of a police post. The instrument is silent on religious figures. Statutory Instrument 148/2017 adds to the list as pronounced in SI 648/83. For religious figures, the nearest that one gets to be an *ex officio* commissioner of oaths is where they are registered marriage officers. There is no specific reference to a particular office within the religious sector.

Given that the applicant is the *dominus,* the inquiry must start with the founding affidavit. A perusal of the affidavit of the applicant shows that it was signed before one Reverend F. Sibanda as commissioner of oaths on the 3rd of October 2025. The bottom part of the stamp is not legible. As submitted by the first respondent it is not clear in what capacity Reverend F. Sibanda commissioned the affidavit. Perhaps the illegible part tells the story but this can only be mere speculation. On the authority of the *Firstel* matter, the stamp does not show the capacity upon which the Reverend is acting as commissioner of oaths. Merely stating that he is a commissioner of oaths in my view does not meet the requirements of the law. The inescapable conclusion is that there is no valid founding affidavit before the court and hence no application. Having made this finding, it is not necessary for me to inquire into the validity or lack thereof of the first respondent's own affidavit as there is nothing to respond to. The same fate befalls the answering affidavit. The issue of the PCB becomes a non-issue. There is also nothing to dismiss as there is no valid process before the court.

On costs, I find that the first respondent papers though not neatly packaged did raise these issues. Accordingly it is only apt that costs be awarded in their favour. However, due to the not- so neat manner in which their papers were presented, costs will be in the ordinary scale. The second respondent represented by counsel submitted that they will abide by the court order and accordingly no costs shall be awarded in their favour.

DISPOSITION

1. There being no valid application, the matter be and is hereby struck off the roll.
2. The applicant shall pay costs on an ordinary scale.

JONASI NYAMBIRA AND TAMBANEWENYU, applicants' legal practitioners

F. NDOU. LEGAL PRACTICE, first respondent's legal practitioners